

HOUSE No. 982

The Commonwealth of Massachusetts

PRESENTED BY:

Meghan K. Kilcoyne

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to right of entry to prevent environmental violations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>1/16/2025</i>

HOUSE No. 982

By Representative Kilcoyne of Clinton, a petition (accompanied by bill, House, No. 982) of Meghan K. Kilcoyne relative to right of entry of solid waste disposal facilities to prevent environmental violations. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to right of entry to prevent environmental violations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 150A of the Chapter 111 of the General Laws, as appearing in the
2 2020 Official Edition, is hereby amended by inserting after the first sentence in the twenty-first
3 paragraph the following sentences:-

4 Personnel or authorized agents of the department may at all reasonable times enter any
5 premises, public or private, for the purpose of investigating, sampling or inspecting any records,
6 condition, equipment, practice or property relating to activities subject to this section, and may at
7 any time enter such premises for the purpose of protecting the public health or safety, or to
8 prevent damage to the environment. For the purposes of such entries no warrant shall be required
9 provided, however, that upon demand by the owner or person in control of such premises, a
10 warrant authorizing such entry and inspection shall be sought after such demand. Any court,
11 judge, or justice authorized to issue warrants in criminal cases may issue such warrants.